

STATE OF INDIANA IN THE Saint Joseph CIRCUIT COURT
COUNTY OF Saint Joseph CAUSE NO. _____

IN RE THE PETITION FOR EXPUNGEMENT
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Alexandrina-Katharine Montgomery Fitzwilliam
Petitioner

APPEARANCE BY UNREPRESENTED PERSON IN EXPUNGEMENT MATTER

1. My name is Alexandrina-Katharine Montgomery Fitzwilliam and I am the Petitioner in this case I am not represented by a lawyer.

2. My current address is:

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B
South Bend, IN 46601-9999

Email address: jordan.reyes@example.com

☐

I will accept service at the above email address.

Phone: 555-0142 ext. 44821

Fax: _____

OR, if in a related case, you have used the Attorney General confidential address, you may check the box below:

☐

Attorney General confidential address

3. This is an XP case type as defined in Administrative Rule 8(B)(3).

4. There are related cases: *(If yes, please indicate below)*

☐

Yes

☐

No

Caption and case number of related cases:

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Additional information as required by local rule:

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the Saint Joseph County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the Saint Joseph County Prosecutor via the Indiana E-filing System.

Signature

STATE OF INDIANA

IN THE Saint Joseph CIRCUIT

COURT

COUNTY OF Saint Joseph

CAUSE NO. _____

☐

An Exhibit listing additional cause numbers is attached

IN RE THE PETITION FOR EXPUNGEMENT/SEALING
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Related Criminal Cause Numbers

Alexandrina-Katharine Montgomery Fitzwilliam

Petitioner

**VERIFIED PETITION FOR EXPUNGEMENT OF AND SEALING OF RECORDS OF ARREST,
CRIMINAL CHARGES, OR JUVENILE DELINQUENCY ALLEGATIONS PURSUANT TO I.C. §
35-38-9-1**

Comes now the Petitioner Alexandrina-Katharine Montgomery Fitzwilliam, in person and duly sworn upon Petitioner's oath, and files their *Petition For Expungement And Sealing Of Records Arrest, Criminal Charges Or Juvenile Delinquency Allegations* under the provisions of IC § 35-38-9-1 and would respectfully request that the Court grant said petition and find that the records related to the cause numbers addressed in this petition be expunged pursuant to statute and that records be removed from public access in accordance with IC § 35-38-9-1(f). In support thereof, the Petitioner would swear and affirm to the following factual information:

INFORMATION PERTAINING TO ALL EXPUNGEMENT MATTERS:

1. Petitioner's full name is Alexandrina-Katharine Montgomery Fitzwilliam, and Petitioner has used the following other names or aliases:

2. Petitioner's date of birth is 04/17/1991; Petitioner's Social Security Number is XXX-XX-_____; and Petitioner's driver license or state identification number is _____

3. No charges are currently pending against the Petitioner, and Petitioner is not currently participating in a pretrial diversion program.

**Take out this page and insert your
non-conviction Facts pages (from
the Non Conviction Insert Forms)**

WHEREFORE, Petitioner respectfully requests that this Court grant this Petition and issue the following orders, pursuant to I.C. §35-38-9-1(f), regarding each Expungement Matter addressed by this petitioner:

1. Order all information placed or retained in any state central repository for criminal history information or in any other alphabetically arranged criminal history information system maintained by a local, regional, or statewide law enforcement agency removed by the following agencies:
 - a. Indiana State Police;
 - b. Saint Joseph County Sheriff's Department;
 - c. _____;
 - d. _____;
 - e. _____.

☐ Order the records of the sentencing court, a juvenile court, the Court of Appeals, and the Supreme Court concerning the person shall be redacted or permanently sealed;

☐ As to the following appellate cause numbers:

order the Clerk of the Appellate Courts to:

- a. seal or redact any records in the clerk's possession that relate to the arrest, criminal charges, juvenile delinquency allegation, vacated conviction, or vacated juvenile delinquency adjudication;
- b. redact the opinion or memorandum decision as it appears on the computer gateway administered by the office of technology so that it does not include the petitioner's name (in the same manner that opinions involving juveniles are redacted) and provide a redacted copy of the opinion to any publisher or organization to whom the opinion or memorandum decision is provided after the date of the order of expungement; and

Grant all other relief just and proper in the premises.

AFFIRMATION

I affirm under penalties for perjury that the foregoing representations and statements are true and accurate.

Respectfully submitted,

Signature

Alexandrina-Katharine Montgomery Fitzwilliam
Printed Name

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the Saint Joseph County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the Saint Joseph County Prosecutor via the Indiana E-filing System.

Signature

Form ACR (Access to Court Records)

STATE OF INDIANA

IN THE Saint Joseph CIRCUIT

COURT

COUNTY OF Saint Joseph

CAUSE NO. _____

IN RE THE PETITION FOR EXPUNGEMENT
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Alexandrina-Katharine Montgomery Fitzwilliam

Petitioner

**Notice of Exclusion of Confidential Information from Public Access
(FILED WITH TRIAL COURT CLERK)**

Contemporaneous with the filing of this notice, Alexandrina-Katharine Montgomery Fitzwilliam has filed confidential information under the Indiana Rules on Access to Court Records. Alexandrina-Katharine Montgomery Fitzwilliam, provides this notice that the confidential information is to remain excluded from public access in accordance with the authority listed below:

Name or description of document

ACR grounds for exclusion

Confidential Information Form listing
Petitioner's full Social Security Number

Access to Court Records Rule 5

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the Saint Joseph _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the Saint Joseph _____ County Prosecutor via the Indiana E-filing System.

Signature

Not Public Record

CONFIDENTIAL INFORMATION FORM

XP CAUSE NUMBER: _____

PETITIONER'S NAME: Alexandrina-Katharine Montgomery Fitzwilliam

PETITIONER'S FULL SOCIAL SECURITY NUMBER: _____

**ATTENTION CLERK: FOR SELF REPRESENTED LITIGANTS TREAT THIS FORM
AS IF IT IS PRINTED ON GREEN PAPER.**

IF THIS DOCUMENT IS E-FILED, FILE THIS AS A CONFIDENTIAL DOCUMENT

Not Public Record

NOT FOR PUBLIC RECORD

STATE OF INDIANA IN THE Saint Joseph CIRCUIT COURT
COUNTY OF Saint Joseph CAUSE NO. _____

☐ An Exhibit listing additional cause numbers is attached

IN RE THE PETITION FOR EXPUNGEMENT/SEALING
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Related Criminal Cause Numbers

Alexandrina-Katharine Montgomery Fitzwilliam
Petitioner

**FINDINGS AND ORDER GRANTING PETITION FOR EXPUNGEMENT/SEALING OF
RECORDS OF ARREST, CRIMINAL CHARGES, OR JUVENILE DEINQUENCY
ALLEGATIONS PURSUANT TO I.C. § 335-38-9-1**

Petitioner, Alexandrina-Katharine Montgomery Fitzwilliam, [by counsel, _____,]
filed a *Verified Petition for Expungement/Sealing Of Records Of Arrest, Criminal Charges, Or Juvenile
Delinquency Allegations*, and the State of Indiana, by counsel, ☐ filed ☐ did not file its response to said
Petition.

Petitioner's *Verified Petition for Expungement* seeks relief as provided by I.C. § 35-38-9-1 for an arrest,
criminal charge, or juvenile delinquency allegation that did not result in a conviction.

☐ Upon review of said Petition ☐ and the State of Indiana's Response, the Court finds that the State
has stated no legal basis upon which to state an objection to the Court's granting of Petitioner's
Verified Petition for Expungement/Sealing of Arrest Records.

☐ A hearing was held on _____ regarding said Petition of which all
parties were given notice and during which all parties were given an opportunity to present evidence
and arguments.

The Court now enters the following Findings and Order on Petitioner's Verified Petition for Expungement:

FINDINGS AS TO ALL EXPUNGEMENT MATTERS:

1. Petitioner's full name is Alexandrina-Katharine Montgomery Fitzwilliam, and Petitioner has used the
following other names or aliases:

2. Petitioner's date of birth is 04/17/1991; Petitioner's Social Security Number is
_____; and Petitioner's driver's license number is _____.
3. No charges are currently pending against the Petitioner, and Petitioner is not currently participating in a
pretrial diversion program.

**Take out this page and insert your
non-conviction Findings pages
(from the Non Conviction Insert
Forms)**

**Take out this page and insert your
non-conviction Exhibit pages (from
the Non Conviction Insert Forms)**

NOT FOR PUBLIC RECORD

ORDER

It is therefore ORDERED, ADJUDGED, and DECREED that Petitioner's *VERIFIED PETITION FOR EXPUNGEMENT/SEALING OF RECORDS OF ARREST, CRIMINAL CHARGES, OR JUVENILE DELINQUENCY ALLEGATIONS* shall be GRANTED as to Expungement Matters _____ (pertaining to ALL records related to the following criminal and MC cause numbers:

_____ and DENIED as to Expungement Matters _____ (pertaining to records related to cause numbers: _____

1. As to all Expungement Matters on which expungement is granted:
 - a. As required under I.C. § 35-38-9-1(g), all information necessary to identify particular agency records that are to be expunged pursuant to this Order has been included in Exhibit A attached to and incorporated in this Order.
 - b. All information placed or retained in any state central repository for criminal history information or in any other alphabetically arranged criminal history information system maintained by a local, regional, or statewide law enforcement agency shall be removed by the following agencies:
 - i. Indiana State Police;
 - ii. _____ County Sheriff's Department;
 - iii. _____;
 - iv. _____;
 - v. _____.

☐ The records of the sentencing court, a juvenile court, the Indiana Court of Appeals, and the Indiana Supreme Court concerning the person shall be redacted or permanently sealed;

☐ As to court records stored under the following appellate cause/case numbers:

- i. The Clerk of the Supreme Court shall seal or redact any records in the Clerk's possession that relate to the arrest, criminal charges, juvenile delinquency allegation, vacated conviction, or vacated juvenile delinquency adjudication;
- ii. The Clerk of the Supreme Court shall redact the opinion or memorandum decision as it appears on the computer gateway administered by the office of technology so that it does not include the petitioner's name (in the same manner by which opinions involving juveniles are redacted) and provide a redacted copy of the opinion to any publisher or organization to whom the opinion or memorandum decision is provided after the date of the order of expungement.

NOT FOR PUBLIC RECORD

2. Nothing in this Order shall be construed to prevent the Indiana bureau of Motor Vehicles from reorting information about a conviction for a violation of a traffic control law to the Commercial Drivers License Information System (CDLIS) in accordance with I.C. § 9-24-6-2(d).

SO ORDERED this _____.

Judicial Officer

Notice to be given by: ☐ Court ☐ Clerk ☐ Other:

PROOF OF NOTICE

A copy of the entry was served either by mail to the address or record, deposited in the attorney's distribution box, or personally distributed to the following persons:

State of Indiana: _____

Petitioner: _____

Date of notice:

Initial of person who notified parties: ☐ Court ☐ Clerk ☐ Other

Distribution to:

☐ _____
Attorney for Petitioner

Indiana State Police
Attn: Records Division
100 N Senate Ave., Room N301 (East)
Indianapolis, IN 46204

☐ Alexandrina-Katharine Montgomery Fitzwilliam
Petitioner
12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B
South Bend, IN 46601-9999

Bureau of Motor Vehicles
IGC North, Room 402
100 North Senate Avenue
Indianapolis, IN 46204

Saint Joseph _____ County Prosecutor
Attn: _____

Indiana Department of Correction
Attn: Records Division
302 W. Washington Street, Room E-334
Indianapolis, IN 46204

Saint Joseph _____ County Sheriff's Dept.

Office of the Indiana Attorney General
Indiana Government Center South, 5th Floor
302 W. Washington Street
Indianapolis, IN 46204

NOT FOR PUBLIC RECORD

☐ _____ County Clerk

[check this box only if this ORDER applies to court records pertaining to a PROBATION that was transferred to another county.]

Law Enforcement Agencies:

[illegible]

☐ Clerk of the Appellate Courts

216 State House

200 West Washington Street

Indianapolis, IN 46204

[check this address only if one or more of the expunged cases was appealed.]

□ Indiana Supreme Court

Office of Judicial Administration

Trial Court Technology

251 N. Illinois Street, Ste. 700

Indianapolis, Indiana 46204

[check this address only if a NO CONTACT ORDER was issued in one or more of the expunged cases as a condition of PRE-TRIAL RELEASE or PROBATION.]

**If necessary, attach a document
listing any additional cause
numbers that did not fit on page 1**